

2. 9:00 AM CASE NUMBER: C25-01575
CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 11. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 11 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

3. 9:00 AM CASE NUMBER: C25-03661
CASE NAME: KELLEN KIRK VS. TESLA, INC.,
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 14. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 14 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-01776
CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION

TENTATIVE RULING:

I. Motion and Opposition

Before the Court is Defendant Alamo Ridge Subdivision 6419 Association's ("Defendant," "Cross-Complainant," or "the HOA") motion for summary judgment or, in the alternative, for summary adjudication. The motion is opposed by Plaintiffs Mark and Eileen Frohnen ("Plaintiffs," "Cross-Defendants," "the Frohns"). This motion relates to Plaintiffs' complaint for (1) breach of governing documents; (2) slander of title; (3) negligence; and (4) declaratory relief, and Defendant's cross-complaint for (1) negligence; (2) breach of contract; (3) nuisance; (4) premises liability; (5) equitable indemnity; and (6) declaratory and injunctive relief.

Defendant moves for summary judgment or, in the alternative, summary adjudication, of Plaintiffs' complaint on the grounds that (1) Plaintiffs' causes of action for breach of governing documents and negligence fail as a matter of law because it is undisputed that Defendant did not breach any duties it owed to Plaintiffs under the governing documents or otherwise; (2) the cause of action for slander of title fails as a matter of law because it is undisputed that the lien amount assessed on Plaintiffs' property was without malice or reckless disregard; and (3) the declaratory relief cause of action is derivative of Plaintiffs' other causes of action.